Protections at work fact sheet

Overview

All people working in Australia under the Fair Work system are entitled to general workplace protections. Under the general protections, employers also can't take adverse action against an employee (for example, treating them less favourably than they would otherwise have) because:

- they have a workplace right (such as a right to take leave)
- they have exercised or propose to exercise a workplace right (such as requesting to take leave they're entitled to)
- of a protected attribute.

Employees also have other protections in relation to these rights including (but not limited to):

- coercion
- misrepresentation
- undue influence or pressure in relation to:
  - individual flexibility arrangements under modern awards and enterprise agreements
  - guarantees of annual earnings
  - deductions from wages.

What rights are protected under general protections?

Workplace rights

The term 'workplace right' is broadly defined under the Fair Work Act, and exists where a person:

- is entitled to a benefit or has a role or responsibility under a workplace law, workplace instrument (such as an award or agreement) or an order made by an industrial body
- is able to initiate or participate in a process or proceedings under a workplace law or workplace instrument
- is able to make a complaint or inquiry:
  - to a person or body under a workplace law to seek compliance with that workplace law or a workplace instrument
  - if the person is an employee, in relation to their employment.

Workplace rights also include the right for employees to talk about, or not talk about, their current or past pay. This includes the terms and conditions that would be needed to work out their pay, such as hours of work. Employees can ask each other questions about their pay, but they don't have to share this information if they don't want to.

For more information about these rights, including when they started applying and who they apply to, visit fairwork.gov.au/pay-secrecy

Industrial activities

All employers, employees and independent contractors are free to become, or not to become, members of an industrial association, such as a trade union or employer association. In addition, all employers, employees and independent contractors are entitled to engage or not engage in what are called 'industrial activities'.

These activities are defined in the Fair Work Act. They include various forms of lawful participation in an industrial association (such as a trade union) and its activities, including organising or promoting lawful activities for or on its behalf, representing its views, and seeking to be represented. Further, it covers a person being victimised for refusing to be involved in activity organised or promoted by an industrial association or industrial action, whether the activity is lawful or unlawful.

For more information on industrial action, including what is protected industrial action, please see our Industrial action fact sheet at fairwork.gov.au/factsheets

Discrimination

Under the Fair Work Act, it is unlawful for an employer to take adverse action against a person who is an employee, former employee or prospective employee because of the person's race, colour, sex, sexual orientation, breastfeeding, gender identity, intersex status, age, physical or mental disability, marital status, family or carer's responsibilities, pregnancy, religion, political opinion, national extraction, social origin, or because they are (or have been) experiencing family and domestic violence.

For more information on unlawful workplace discrimination, as well as bullying and sexual harassment protections, please see our Workplace discrimination fact sheet at fairwork.gov.au/factsheets

What am I protected from?

Adverse action

Adverse action is action that is unlawful if it is taken for particular (prohibited) reasons. The Fair Work Act defines a number of actions as adverse actions.

Adverse action taken by a person includes doing, threatening, or organising any of the following, but is not limited to:

- an employer dismissing an employee, injuring them in their employment, altering their position to their detriment, or discriminating between them and other employees
- an employer refusing to employ a prospective employee or discriminating against them in the terms and conditions the employer offers
- a principal terminating a contract with an independent contractor, injuring them or altering their position to their detriment, refusing to use their services or to supply goods and services to them, or discriminating against them in the terms and conditions the principal offers to engage them on
- an employee or independent contractor taking industrial action against their employer or principal
- an industrial association, or an officer or member of an industrial association, organising or taking industrial action against a person, or taking action that is detrimental to an employee or independent contractor
- an industrial association imposing a penalty of any kind on a member.

The Fair Work Act prohibits a person from taking adverse action against another person because that person:

- has a workplace right
- has or has not used a workplace right
- proposes to, or proposes not to, use a workplace right
- is or is not a member or officer of a trade union
- engages or does not engage in industrial activity (as set out previously).

It also prohibits a person from taking adverse action against another person to prevent the other person using a workplace right.

Adverse action does not include, for example:

- action that is authorised by or under the Fair Work Act or any other Commonwealth law
- an employer standing down an employee who is engaged in protected industrial action
- where the action is based on the inherent requirements of the job.

Coercion

It is unlawful for a person to organise or take action (or threaten to) with the intent to coerce another person or third party to:

- use or not use a workplace right, or use it in a particular way
- take part in industrial activity
- employ or not employ a particular person
- engage or not engage a particular independent contractor
- allocate or not allocate certain duties or responsibilities to a particular employee or independent contractor
- give a particular employee or independent contractor certain duties or responsibilities.

Misrepresentation

A person must not knowingly or recklessly make a false or misleading representation about:

- the workplace rights of another person
- the use, or the effect of the use, of a workplace right by another person
- another person's obligation to take part in industrial activity
- another person's obligation to tell anyone whether they, or a third person:
  - is or is not, or was or was not, an officer or member of an industrial association
  - is or is not taking, or has or has not taken part in industrial activity.

Undue influence or pressure

Undue influence or pressure is when an employer exerts significant or inappropriate pressure on an employee to modify or alter their conditions of employment.

It is unlawful for an employer to force or try to force an employee to:

- make or not make an agreement or arrangement under the National Employment Standards
- make or not make an agreement or arrangement under a term of a modern award or enterprise agreement that is permitted to be included in the award or agreement
- agree to or terminate an individual flexibility arrangement under an enterprise agreement or modern award
- accept a guarantee of annual earnings
- agree or not agree to a deduction from amounts payable to the employee in relation to the performance of work.

The undue influence or pressure or coercive behaviour can be unlawful even if it does not succeed in making the person take or not take the action.

How can I seek help for a general protections contravention?

There are several ways to seek help.

Fair Work Ombudsman

A person who believes they have been subject to a general protections contravention can request assistance by calling us on 13 13 94.

We can investigate allegations of contraventions of the general protections provisions.

Courts can impose penalties for general protections contraventions. Find more information about the current maximum penalty amounts at fairwork.gov.au/litigation

Fair Work Commission

The Fair Work Commission offers dispute resolution where there are alleged contraventions of the general protections provisions.

There are 2 main types of applications:

- disputes — if a person hasn't been dismissed, but alleges that there has been some other contravention of the general protections provisions, they may make an application to the Fair Work Commission to deal with the dispute.
- dismissals — if a person has been dismissed and alleges that their dismissal was in contravention of the general protections provisions, they may be able to make a general protections dismissal application to the Fair Work Commission. A general protections dismissal application must be lodged within 21 days of the dismissal taking effect.

The Fair Work Commission's role in both of these types of applications is generally limited to dispute resolution. They will work with the employee and the employer to try to resolve the dispute.

If an agreement is reached, then the case is closed. If no agreement is reached, the Fair Work Commission will issue a certificate to allow the case to go to court. A person will have 14 days after the certificate is issued to either:

- apply to the Federal Court or the Federal Circuit and Family Court to decide the case, or
- apply for arbitration by the Fair Work Commission, if both parties agree.

For more information on general protections applications with the Fair Work Commission visit fwc.gov.au/workplace-disputes/general-protections-and-harmful-adverse-action/general-protections-applications

Contact us

Fair Work online: fairwork.gov.au

Fair Work Infoline: **13 13 94**

Need language help?

Contact the Translating and Interpreting Service (TIS) on **13 14 50**

Help for people who are deaf or have hearing or speech difficulties

You can contact us through the National Relay Service (NRS).

Select your preferred access option and give our phone number: **13 13 94**

The Fair Work Ombudsman is committed to providing you with advice that you can rely on. The information contained in this resource is general in nature. If you are unsure about how it applies to your situation you can call our Infoline on 13 13 94 or speak with a union, industry association or a workplace relations professional.

Last updated: September 2026
© Copyright Fair Work Ombudsman